

GAHC010065972025



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THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : I.A.(CrI.)/476/2025

KHIRESWAR SAIKIA @ BOGAI
S/O. SRI DURNA SAIKIA, R/O. VILL.- NO. 2 NABAJYOTI, P/O. AND P/S.
MERAPANI, DIST. GOLAGHAT, ASSAM.

VERSUS

THE STATE OF ASSAM AND ANR.
REP. BY THE PP, ASSAM.

2:GITANJALI BORA
W/O. SRI SITARAM BORA
R/O. NO. 2 NABAJYOTI
P/S. MERAPANI
DST. GOLAGHAT
ASSA

Advocate for the Petitioner : MS. N CHOUDHURY,

Advocate for the Respondent : PP, ASSAM, MR. M S MONDAL(R-2),MR. D A KAIYUM (R-2)

Linked Case : ST.Rev./0/0

KHIRESWAR SAIKIA ALIAS BOGAI
GOLAGHAT
ASSAM

VERSUS

THE STATE OF ASSAM
REP BY PP ASSAM

2:SMT GITANJALI BORA
GOLAGHAT
ASSAM

Advocate for : NIRMALA CHOUDHURY
Advocate for : appearing for THE STATE OF ASSAM

BEFORE
HONOURABLE MR. JUSTICE SOUMITRA SAIKIA
HONOURABLE MR. JUSTICE ANJAN MONI KALITA

ORDER

08.08.2025

(S. SAIKIA, J)

Heard Ms. N. Choudhury, learned Legal Aid Counsel for the applicant/appellant. Also heard Mr. M.S. Mondal, learned counsel for the opposite party No.2/respondent No.2 and Ms. A. Begum, learned APP for the opposite party No.1/respondent No.1.

This Interlocutory Application filed by the applicant/appellant seeking condonation of delay of 142 days that had occurred in filing the accompanying criminal appeal against the judgment and order dated 03.09.2024 passed by the Special Judge (POCSO) at Golaghat in POCSO Case No. 54/2021.

The learned counsel for the respondent does not object to the delay.

Upon considering the submissions of the learned counsel for the parties and upon perusal of the grounds urged in support of the prayer for condonation of the delay and in absence of any specific objections from the respondents to the contrary

and also considering the law laid down by the Apex Court in *N. Balakrishnan Vs. M. Krishnamurthy* reported in (1998) 7 SCC 123, this Court considers it appropriate to condone the delay, as prayed for.

Accordingly, the delay of 142 days is condoned.

The Interlocutory Application stands allowed and disposed.

The Registry is directed to register the accompanying appeal and list it thereafter.

JUDGE

JUDGE

Comparing Assistant